**RESOLUTION NO. 2026-20**

**A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ROSEMEAD, CALIFORNIA, ORDERING THE SUBMISSION TO THE QUALIFIED ELECTORS OF THE CITY A MEASURE PROPOSING THE ADOPTION OF A CHARTER AT THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026; APPROVING THE BALLOT LANGUAGE FOR THE MEASURE; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS OF THE PROPOSED CHARTER ; PROVIDING DIRECTION ON RELATED BALLOT ACTIONS; CALLING OF A MUNICIPAL ELECTION AND REQUESTING THAT THE BOARD OF SUPERVISORS OF LOS ANGELES COUNTY CONSENT TO THE CONSOLIDATION OF THE BALLOT MEASURE WITH THE GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026 PURSUANT TO ELECTIONS CODE SECTION 10403**

**WHEREAS**, cities in California are either general law cities or charter cities;

**WHEREAS,** general law cities may only adopt and enforce ordinances and regulations that are consistent with the laws of the State of California;

**WHEREAS,** charter cities may adopt and enforce ordinances and regulations regarding municipal affairs subject only to the limitations contained in the city's charter;

**WHEREAS**, the City of Rosemead is a general law city;

**WHEREAS**, Article XI, section 3(a) of the California Constitution grants cities' voters the ability to adopt a charter by a vote of a majority of City voters voting at an election called for that purpose;

**WHEREAS**, after over a year of discussions including discussing the item for 2024 special election, and committee meetings, a proposed charter was presented to the City Council on May 26, 2026, and the City Council directed that the charter be set for public hearings pursuant to California law;

**WHEREAS**, the City Council conducted two public hearings on March 10 and April 21, 2026, and received public testimony regarding a proposed charter; and

**WHEREAS,** pursuant to California Government Code Section 34458(b), this resolution is being adopted at a City Council meeting which is at least twenty-one (21) calendar days after the second public hearing referenced above; and

**WHEREAS,** pursuant to California Elections Code Sections 1415 and 9255, the City Council is authorized by statute to submit the proposed Charter to the voters at the General Municipal Election to be held on November 3, 2026; and

**WHEREAS,** the City Council finds that the proposed Charter is now in the form that is suitable for presentation to the voters of Rosemead.

**WHEREAS,** the City Council desires to take additional actions as necessary related to the Ballot Measure as provided for under the Elections Code.

**WHEREAS,** the City Council desires to request the Los Angeles County Board of Supervisors to consent to the measure being added to the General Election being held on November 3, 2026.

**NOW, THEREFORE,** the City Council of the City of Rosemead does hereby resolve as follows:

**SECTION 1. Recitals.** The City Council hereby finds and determines that the foregoing recitals are true and correct, are incorporated herein and by this reference made an operative part hereof.

**SECTION 2. Submission of Charter.** Pursuant to its right, power, and authority under the California Constitution, the laws of the State of California, the City Council on its own motion hereby orders submitted to the voters of Rosemead at the General Municipal Election to be held on November 3, 2026, proposing the adoption of the Charter attached hereto as Exhibit "A" and incorporated herein by reference as if set forth in full ("Charter Measure"). The question to appear on the ballot for voter consideration shall be as follows:

| | | |
|---|---|---|
| Shall the City of Rosemead Charter be adopted to establish Rosemead as a charter city to have more authority over municipal affairs, imposing term limits on City Councilmembers, establishing the position of City prosecutor, permitting use of City funds for economic development, continuing following California law for limiting compensation for Councilmembers, and giving the City Council authority to adopt an ordinance giving veterans and disabled veterans preference in awarding contracts? | YES | |
| | NO | |

**SECTION 3. Letter Designation.** The City Council requests the following letter be designated to the Ballot Measure: _RC____. If that letter is not available, the City Council requests the Ballot measure be designated the letter __R____. If that letter is not available, the Charter Measure shall be designated by letter by the Los Angeles County Elections Department.

**SECTION 4. Text of Charter Measure to be included:** The full text of the proposed Charter Measure to be submitted to the voters is set forth in Exhibit A and incorporated herein by reference as if set forth in full. The City Council hereby approves the proposed Charter Measure, the form thereof, and its submission to the voters of the City at the November 3, 2026, election. The full text of the Charter Measure shall be printed in the ballot materials and available for public inspection in the City Clerk's office and on the City's website at www.rosemeadca.gov.

**SECTION 5. Majority Vote Required.** The vote requirement for the measure to pass is a majority (50% + 1) of the votes cast. The proposed Charter Measure shall not take effect unless approved by a vote of the majority of the voters voting on the question.

**SECTION 6. Impartial Analysis.** The City Council hereby authorizes and directs the City Attorney to prepare an impartial analysis of the Charter Measure showing the effect of the measure on the existing law and operation of the measure. The impartial analysis shall be submitted by the City Attorney to the City Clerk on or before August 14, 2026, at 12:00 p.m., shall not exceed 500 words in length, and otherwise shall comply in all respects with the applicable provisions of the Elections Code of the State of California.

**SECTION 7. Submission of Ballot Arguments.**

(a) Arguments in favor and against the Charter Measure shall be filed with the City Clerk, no later than 12:00 p.m. on Friday, August 14, 2026, signed, with the printed name(s) and signature(s) of the author(s) submitting them, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument. Any member of the City Council is hereby authorized to prepare a written argument in favor of or against the measure.

(b) Arguments shall not exceed three hundred (300) words and shall be signed by not more than five (5) persons.

(c) Pursuant to California Elections Code Section 9285, the City Council is hereby adopting provisions for the filing of rebuttal arguments for this measure. Accordingly, if and when the City Clerk has selected the arguments for and against the measure, which will be printed and distributed to the voters, the City Clerk shall send copies of the argument in favor of the measure to the authors of the argument against it, and copies of the argument against it to the authors of the argument in favor. Any rebuttal argument shall not exceed 250 words and shall be filed no later than 6:00 p.m. on August 24, 2026, accompanied by the printed names and signatures of the persons submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument that it seeks to rebut.

(d) The City Council voted to delegate up to two members to author an argument for the Measure and if so authorized, also a rebuttal, on behalf of the City Council subject to the Election Code deadlines and rules. The City Council voted to delegate Mayor Sandra Armenta and Councilmember Steven Ly to author an argument for the Measure and rebuttal on behalf of the City Council.

**SECTION 8. Request to Consolidate and Conduct Election and Canvass Returns.**

(a) The City Council hereby calls for a Municipal Election for the purpose of adopting of a City Charter and requests that the Los Angeles County Board of Supervisors consolidate the election called by this Resolution with the statewide election to be conducted on November 3, 2026, and order the election to be conducted by the Registrar of Voters. The City Clerk is directed to file a certified copy of this Resolution with the Board of Supervisors of Los Angeles County and the Registrar of Voters of Los Angeles County.

(b) The election on the Charter Measure set forth in Section 2 shall be held and conducted, the voters canvassed, and the returns made, and the results ascertained and determined as provided herein. The election shall be held in accordance with the Elections Code of the State of California. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. In all particulars not recited in this resolution, the election shall be held and conducted as provided by State law for holding municipal elections.

(c) The election on the Charter Measure set forth in Section 2 shall be held in Los Angeles County in the City of Rosemead on November 3, 2026, as required by law, and the Board of Supervisors of Los Angeles County is authorized to canvass the returns of the election with respect to the votes cast in the City of Rosemead and certify the results to the City Council of the City of Rosemead.

(d) At the first regular meeting of the City Council of the City of Rosemead occurring after the returns of the election for the Charter Measure have been canvassed and the results have been certified to the City Council, or at a special meeting called for such purpose if required by law, the City Council shall cause to be entered in its minutes a statement of the results of the election.

(e) The City Council acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code section 10418.

(f) The City Council determines and declares that the City will pay to the County actual expenses incurred by the County by the consolidation of the Municipal Election with the Statewide General Election. The City shall reimburse the County for services performed when the work is completed and upon presentation to the City of a properly approved bill.

**SECTION 9. California Environmental Quality Act.** Adopting this Resolution, in which the Council calls for an election, places a measure on the ballot, requests County to consolidate the election and takes other necessary actions regarding the election, is not subject to review under the California Environmental Quality Act ("CEQA") pursuant to Public Resources Code Section 21000, et seq.) and the CEQA Guidelines (14 Cal. Code Regs. §§ 15000 et. seq.), including without limitation, Public Resources Code section 21065 and California Code of Regulations 15378(a) as this is not a "project" that may cause a direct, or reasonably foreseeable indirect, physical change in the environment. If it is a "project" it is exempt under the common sense exception (12 Cal. Code Regs. § 15061(b)(3)) because it can be seen with certainty that there is no possibility that this action may have a significant effect on the environment.

**SECTION 10. Services of City Clerk.** The City Clerk is hereby directed to file a certified copy of this Resolution with the Board of Supervisors and the Registrar of Voters of the County of Los Angeles and take all necessary steps to place the Charter Measure on the ballot and to cause the Charter Measure to be printed. A copy of the Charter Measure will be made available to any voter upon request an also be placed on the City's website.

**SECTION 11. Other Acts Authorized.** The Mayor, City Manager, City Clerk, City Attorney and all other appropriate employees of the City are hereby authorized and directed, to do any actions, to execute and deliver any and all documents that are deemed necessary and advisable in order to complete the process for placing the Measure on the November 3, 2026, ballot.

**SECTION 12. Severance.** Should any section, subsection, clause or provision of this Resolution for any reason be held to be invalid, then the remainder of the Resolution shall be deemed valid, it being expressly declared that this Resolution, and each and every section, subsection, clause and phrase hereof would have been prepared, proposed, approved, adopted and/or ratified even if any other section, subsection, sentence, clause or phrase of this Resolution were declared invalid.

**SECTION 13. Effective Date.** This Resolution shall take effect upon its adoption. The City Clerk shall certify to the passage of this Resolution and enter it into the book of original resolutions.

PASSED, APPROVED, and ADOPTED this 26th day of May, 2026.

Sandra Armenta Mayor

APPROVED AS TO FORM:

Rachel Richman, City Attorney

ATTEST:

Ericka Hernandez, City Clerk

STATE OF CALIFORNIA )
COUNTY OF LOS ANGELES ) §
CITY OF ROSEMEAD )

I, Ericka Hernandez, City Clerk of the City Council of the City of Rosemead, California, do hereby certify that the foregoing City Council Resolution No. 2026-20, was duly adopted by the City Council of the City of Rosemead, California, at a regular meeting thereof held on the 26th day of May 2026, by the following vote, to wit:

AYES: ARMENTA, CLARK, DANG, LOW, LY

NOES: NONE

ABSENT: NONE

ABSTAIN: NONE

Ericka Hernandez, City Clerk

**EXHIBIT "A"**

# CITY OF ROSEMEAD
# CITY CHARTER

## PREAMBLE

We, the people of Rosemead enact this Charter to preserve and enhance the economic and social quality of life in our community. Resolutely committed to the belief that local government has the closest affinity to the people governed, and firm in the conviction that the economic and fiscal independence of our local government will promote the health, safety and welfare of all the citizens of this City. We do hereby exercise the express right granted by the Constitution of the State of California to enact and adopt this Charter for the City of Rosemead and to ensure that all municipal affairs that may be controlled by the City as a local control shall be.

## ARTICLE 1
## GOVERNANCE

### Section 1.1. Incorporation and Succession

The City shall continue to be a municipal corporation known as the City of Rosemead. The boundaries of the City of Rosemead shall continue as now established until changed in the manner authorized by law. The City shall remain vested with and shall continue to own, have, possess, control and enjoy all property rights and rights of action of every nature and description owned, had, possessed, controlled, or enjoyed by it at the time this Charter takes effect, and is hereby declared to be the successor of same. It shall be subject to all debts, obligations and liabilities, which exist against the City at the time this Charter takes effect. All lawful ordinances, resolutions, rules and regulations, or portions thereof, in force at the time this Charter takes effect and not in conflict with or inconsistent herewith, are hereby continued in force until the same have been duly repealed, amended, changed or superseded by proper authority.

### Section 1.2. Council-Manager Form of Government

The municipal government established by this Charter shall be known as the "Council-Manager" form of government.

### Section 1.3. Governing Body

The City shall be governed by a City Council composed of five Council Members. The adoption of this Charter shall not in any way alter the current terms of sitting Council Members or the date of elections for City Council.

### Section 1.4. City Council Salaries

Council Members shall receive compensation for their services in accordance with the provisions of State law.

**Section 1.5. Eligibility for City Council**

Only persons meeting the requirements set forth in the general laws of the State of California shall be eligible to run for City Council.

**Section 1.6. Elections for City Council Members**

All elections shall be held in accordance with the provisions of the California Elections Code governing municipal elections.

**Section 1.7. Council Vacancies**

The determination as to when a Council Member has vacated their Council seat and the process for filling such vacancy shall be as set forth in the California Government Code.

**Section 1.8. Term Limits**

The purpose of this section is to create more competitive elections by ensuring that periodically the advantages of incumbency of a City Council Member will yield to increased citizen participation in seeking elective office.

No person shall be a candidate for election to the office of City Council Member after having served as a City Council Member for five consecutive four-year terms, either by election or appointment. This section shall apply prospectively only, and neither the current term as of the effective date of this Charter, nor any prior terms, of sitting Council Members shall be counted as one of the five consecutive four-year terms described herein.

Any person who, either by appointment or election, serves a partial term of office as a member of the City Council shall be deemed, for the purpose of this section, to have served a full four-year term. Any member of the City Council who resigns or is removed from office during a term shall be deemed to have served a full term.

## ARTICLE 2
## MUNICIPAL AFFAIRS

**Section 2.1. Municipal Affairs**

The City Council may adopt and enforce all ordinances, resolutions, rules and regulations in respect to municipal affairs, subject only to restrictions and limitations provided in this Charter, the United States and California Constitutions and applicable, laws and decisions of courts with competent jurisdiction. With respect to any municipal affair not expressly addressed in this Charter, until such municipal affair is expressly addressed in this Charter, or until the City legislates over such municipal affair by the adoption of an ordinance(s), the general laws of the State of California shall govern.

**Section 2.2. Powers of the City**

This City shall have all powers that a City can have under the Constitution and laws of the State of California as fully and completely as though they were specifically enumerated in this Charter. The enumeration in this Charter of any particular power, duty or procedure shall not be held to be exclusive of, or any limitation or restriction upon, this general grant of power.

The City shall have the power to make and enforce all laws and regulations in respect to municipal affairs, subject only to such restrictions and limitations as may be provided in this Charter and in the Constitution of the State of California. The City shall also have the power to exercise, or act pursuant to any and all rights, powers, privileges or procedures, heretofore, or hereafter established, granted or prescribed by any law of the State, by this Charter, or by other lawful authority, or which a municipal corporation might or could exercise, or act pursuant to, under the Constitution of the State of California. The enumeration in this Charter of any particular power shall not be held to be exclusive of, or any limitation upon, the generality of the foregoing provisions. This Charter shall be liberally construed to vest the City with all legal authority and powers necessary to protect the health, safety and general welfare of all of the citizens of the City.

No person, firm or corporation shall ever exercise any franchise, license, permit, easement, privilege or other use, except in so far as he or it may be entitled to do so by direct authority of the Constitution of the State of California, or of the Constitution or laws of the United States, in, upon, over, under or along any street, highway or other public place in the City unless they shall have first obtained a grant therefor in accordance with the provisions of this Charter. Franchises shall be granted by the City Council only in the time and manner, and for such purposes, as may be prescribed or authorized by the constitution or by applicable laws of this state.

The City may exercise all or any of the powers herein set forth singly or jointly with other public agencies in the manner provided by general law.

**Section 2.3. Enterprises**

The City shall have the power to engage in any enterprise deemed necessary to produce revenues for the general fund or any other fund established by the City Council to promote a public purpose.

**Section 2.4. Economic Development**

The City shall encourage, support, and promote economic development and community development in the City. The City shall have the power to utilize revenues from the general fund to encourage, support and promote economic development. The City may undertake economic development activities for the purpose of promoting the general health and welfare of the inhabitants of the City, job creation, improving market rate and affordable housing options, improving retail and commercial options, improving dining, entertainment and recreation options, and improving the City's tax base thereby furthering the City's ability to enhance and provide municipal services to its residents. The economic development activities authorized by this section are municipal affairs.

**Section 2.5. Officers and Employees**

The City Council may, by ordinance, establish a merit system for City employees. Such system may include provisions for the method of the selection of employees, the classification, advancement, suspension, discharge, termination of such employees, and the consolidation and elimination of positions. The said merit system shall apply as to each office or position of employment with the City, except:

A. Elective and appointive officers;

B. Part-time or temporary officers and employees; and

C. Members of boards and commissions.

Such system may be established or amended, by ordinance of the City Council, from time to time, as may be required in the discretion of the City Council in the public interest.

**Section 2.6. City Prosecutor**

The City shall have the authority to establish an office of City Prosecutor. Such establishment will be by adoption of ordinances and resolutions which direct the City Attorney or another qualified attorney to prosecute on behalf of the people any or all criminal cases arising from violation of the provisions of this Charter, City ordinances and such state misdemeanors as the City has the power to prosecute, unless otherwise provided by the City Council.

**Section 2.7. Fines, Penalties and Cost Recovery**

The City shall have the power to enact ordinances providing for different penalties for violations of its ordinances, and/or this Charter, and to prescribe in such ordinances, forfeitures, penalties and punishments for the violation thereof, which punishment shall be by fine or imprisonment, or by both fine and imprisonment.

**Section 2.8. General Law Powers**

Nothing in this Charter shall be construed to prevent or restrict the City from exercising any and all rights, powers and privileges heretofore or hereafter granted or prescribed by the general law of the State of California. All general law powers of cities in California are hereby declared to be possessed by the City. In the event of any conflict between the provisions of this Charter and the provisions of the general laws of the State of California, the provisions of this Charter shall control.

## ARTICLE 3
## Fiscal Matters

**Section 3.1. Purchasing and Contracts**

The City Council may, by ordinance, adopt purchasing and contracting procedures, thresholds and requirements within its municipal affairs authority.

**Section 3.2. Preference for Veterans**

The City Council may, by ordinance, adopt purchasing and contracting procedures, which give to veterans and disabled veterans a credit of additional points, preference or increased grading in the determination of awards of contracts.

Documentary proof of eligibility for Veteran's Preference Credits and exemption from the eligibility limitation must be submitted prior to approval of the City. In the case of a tie grade between a veteran and non-veteran, the veteran shall be ranked highest.

**Section 3.3. Reductions Prohibited**

Revenues raised and collected by the City shall not be subject to subtraction, retention, attachment, withdrawal or any other form of involuntary reduction by any other level of government.

**Section 3.4. Mandates Limited**

No person, whether elected or appointed, acting on behalf of the City shall be required to perform any function which is mandated by any other level of government, unless and until funds sufficient for the performance of such function are provided by said mandating authority.

## ARTICLE 4
## AMENDMENT

**4.1 Amendment**

This Charter and any of its provisions may be amended by a majority vote of the electors voting on the questions. Amendment, revision or repeal may be proposed by initiative or by the governing body.

## ARTICLE 5
## INTERPRETATION

**Section 5.1. Construction and Interpretation**

The language contained in this Charter is intended to be permissive rather than exclusive or limiting and shall be liberally and broadly construed in favor of the exercise by the City of its power to govern with respect to any matter which is a municipal affair.

**Section 5.2. Severability**

If any provision of this Charter should be held by a court of competent jurisdiction to be invalid, void or otherwise unenforceable, the remaining provisions shall remain enforceable to the fullest extent permitted by law.